

Case Number: NAIH-7286-1/2023.

Background: NAIH-5460/2022. Subject: Decision partially granting the request

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] based on the request submitted by the applicant (hereinafter: Applicant) on June 15, 2022, regarding the non-fulfillment of the request by the data subjects [...] represented by a lawyer (hereinafter: Lawyer) against [...] (hereinafter: Respondent 1) and [...] (hereinafter: Respondent 2) (hereinafter collectively referred to as Respondents) makes the following decisions:

I. 1. The Authority partially grants the Applicant's request in its decision and

I.2. establishes that Respondent 2 violated

- Article 15(1) of Regulation (EU) 2016/679 (hereinafter: GDPR or General Data Protection Regulation) on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC, as it did not fulfill the request submitted based on the right of access, and furthermore

II. obliges Respondent 2 to provide information to the Applicant regarding the fulfillment of the request submitted under Article 15 of the GDPR within 15 days from the date of the finality of the decision.

III. The Authority rejects the Applicant's request concerning Respondent 1.

Respondent 2 must prove the fulfillment of the obligation under point II in writing within 15 days from the date of the measure taken – together with the submission of supporting evidence, namely a letter addressed to the Applicant and a copy of the document proving its dispatch – to the Authority. In case of non-fulfillment of the obligation, the Authority will order the execution of the decision.

No procedural costs were incurred during the authority procedure, therefore the Authority did not make a ruling on the bearing of costs.

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No administrative remedy is available against this decision, but it can be challenged in an administrative lawsuit by submitting a statement of claim addressed to the Metropolitan Court within 30 days from the communication. The statement of claim must be submitted electronically to the Authority, which will forward it together with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not benefiting from full personal exemption from fees, the administrative lawsuit fee is HUF 30,000, and the subject matter of the lawsuit is subject to fee exemption. Legal representation is mandatory in proceedings before the Metropolitan Court.

REASONING

I. Procedure Progress

(1) At the request of the Applicant, an authority procedure was initiated on June 15, 2022, based on Section 60(1) of Act CXII of 2011 on informational self-determination and freedom of information (hereinafter: Infotv.), after the Applicant fulfilled its obligation to supplement.

(2) The Authority called upon the Respondents to provide statements in its order to clarify the facts, referring to Section 63 of Act CL of 2016 on general administrative procedure (hereinafter: Ákr.), to which the responses of the Respondents arrived at the Authority within the deadline.

(3) The Authority notified the Applicant and the Respondents that the evidentiary procedure had been

completed and invited them to make statements or comments. Respondent 2 exercised its right to inspect documents. Neither the Applicant nor the Respondents exercised their right to make statements.

II. Clarification of Facts

II.1. The Applicant's request (NAIH-5460-1/2022.)

(4) In the request submitted to the Authority on May 21, 2022, the Applicant stated that they received a letter from the [...] email address on April 7, 2022, in which [...] wrote that "while browsing the job seekers' data sheets, your data sheet stood out to me among the others." The letter was signed by [...], as the office manager of Respondent 2, and included the information that Respondent 2 is a member of the network of Respondent 1.

(5) Since the Applicant never provided their contact information to the letter writer (to [...] and Respondent 2), and because they did not know which data sheet was referred to, they requested in a response message sent the same day to [...] that they be informed how the Applicant's address was obtained and which of their other data had been shared with them. Since the Applicant did not receive a response, they wrote again to Respondent 2 on May 11, 2022, mentioning that if there was no response, they would report it to the Authority. According to the Applicant's statements in their request on May 21, 2022, they did not receive a response to this letter either.

(6) The Authority called upon the Applicant to supplement their request, to which the Applicant submitted their definitive request with a statement received on June 14, 2022.

(7) In the supplementation, the Applicant requested the following from the Authority (NAIH-5460-3/2022):

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to investigate what relationship exists between Respondent 1 and Respondent 2, who is responsible for the processing of their data, whether a violation occurred due to the failure to respond, and if so, to determine that they did not adequately fulfill the request submitted based on the right of access,

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if a violation occurred, to oblige the data controller to respond.

II.2. Statement of Respondent 1 (NAIH-5460-6/2022.)

(8) The Applicant 1 operates the national real estate brokerage franchise network. In [...], the franchise partner businesses in a franchise relationship with Applicant 1 conduct their economic activities independently under the trademark. As the operator of [...], Applicant 1 may enter into framework agreements with certain businesses on behalf of the franchise partner clients. For this reason, Applicant 1 has a framework agreement with [...] Ltd. Applicant 1 has sent a copy of the referenced contract to the Authority.

(9) According to the referenced framework agreement, the franchise partner who utilizes the service of [...] has access to the database of job seekers registered on the [...] website. The service of [...] is utilized by Applicant 2, as the franchise partner of Applicant 1, as specified in the decision. Each franchise partner receives online access to the database directly from [...] Ltd. Each franchise partner business conducts its recruitment activities independently, thus acting as independent data controllers.

(10) To Applicant 1's knowledge, franchise partners can contact the data subject only if they have access to the database. Applicant 1 assumes that Applicant 2 may have come into contact with the Applicant through the utilization of this service.

(11) Applicant 1 does not process the data of the Applicant. Furthermore, Applicant 1 cannot comment on whether Applicant 2 or the franchise partner office manager, [...] received an inquiry from the Applicant and whether a response was given.

II.3. Statement of Applicant 2 (NAIH-5460-7/2022.)

(12) Applicant 2 utilizes the service provided by [...] Ltd. to the partners of [...] based on the framework

agreement established between [...] Ltd. and Applicant 1, which operates [...].

(13) As the ordering party of the service, Applicant 2 has access to the database found on the [...] website, where job seekers can be contacted for recruitment purposes, provided they have given their consent. The legal basis for data processing is the voluntary consent given by the data subject on the [...] website, allowing them to be contacted by job offerers – in this case, Applicant 2.

(14) Due to an administrative error, a substantive response was not provided to the Applicant's request. According to the statement of Applicant 2, this omission was noticed after receiving the Authority's decision.

(15) By utilizing the service of the [...] database, Applicant 2 became the data controller of the Applicant's data, which they accessed based on the voluntary consent given by the Applicant on the [...] website. Applicant 2 used the Applicant's name and email address in the inquiry, and does not process any other data. The referenced inquiry was sent out by the head of the real estate office operated by Applicant 2 for recruitment purposes.

(16) Applicant 2 sent a copy of the email addressed to the Applicant at [...] to the Authority, stating that, as explained in paragraph (14), they noticed an administrative error after receiving the Authority's decision. The letter reveals that the name of the sender is listed as [...], dated 2022.05.12, and the email address was misspelled, as it was sent to [...] email address instead of [...].

The text of the letter is as follows:

“Dear [...],

Our company is a subscriber to the [...] job seeker portal, in whose database your email address is listed as a current job seeker.

If your job search is no longer current, please complete the final deletion of your profile on the [...] page, which can be found in the settings menu after logging in. We have only received your email address; we do not store any other data, and we have no information about you.

We hereby declare that we have removed you from our mailing list!

Best regards:

[...]

III. Applicable Legal Provisions

(17) The GDPR must be applied to the processing of personal data carried out in whole or in part by automated means, as well as to the non-automated processing of personal data that forms part of a filing system or is intended to form part of a filing system. The processing of data subject to the GDPR must be carried out in accordance with the GDPR, with the supplements specified in Section 2 (2) of the Infotv.

(18) According to Articles 4 (1), (2), and (7) of the GDPR:

1. “personal data”: any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, number, location data, online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2. “processing”: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction;

7. “data controller”: the natural or legal person, public authority, agency, or any other body which alone or jointly with others determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data

controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law;

(19) According to Articles 12 (1) - (6) of the GDPR:

(1) The data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15-22 and 34, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing children. The information shall be provided in writing or by other means – including, where appropriate, by electronic means. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject is otherwise verified.

(2) The data controller shall facilitate the exercise of the rights of the data subject as laid down in Articles 15-22. In the cases referred to in Article 11 (2), the data controller shall not refuse to act on a request from the data subject to exercise their rights under Articles 15-22, unless it demonstrates that it is not in a position to identify the data subject.

(3) The data controller shall provide information on actions taken in response to a request under Articles 15-22 without undue delay and in any event within one month of receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months.

extendable. The data controller shall inform the data subject about the extension of the deadline, specifying the reasons for the delay, within one month from the receipt of the request. If the data subject submitted the request electronically, the information should be provided electronically if possible, unless the data subject requests otherwise.

(20) According to Article 15(1) of the GDPR:

(1) The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and if such processing is occurring, the data subject has the right to access the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including particularly third country recipients and international organizations;
- d) where applicable, the envisaged period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period;
- e) the existence of the data subject's right to request from the data controller rectification, erasure, or restriction of processing of personal data concerning them, and to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) if the data have not been collected from the data subject, any available information as to their source;
- h) the fact of automated decision-making, including profiling, referred to in Articles 22(1) and (4), as well as at least in those cases, meaningful information about the logic involved and the significance and the envisaged consequences of such processing for the data subject.

(21) According to Article 58(2)(b) and (d) of the GDPR, in exercising its corrective powers, the supervisory authority:

b) shall issue a reprimand to the data controller or processor if their processing activities have infringed the provisions of this Regulation.

d) shall instruct the data controller or processor to bring their processing operations into compliance with the provisions of this Regulation, in a specified manner and within a specified time frame, where applicable.

(22) According to Article 77(1) of the GDPR, without prejudice to any other administrative or judicial remedies, every data subject shall have the right to lodge a complaint with a supervisory authority - in particular in the Member State of their habitual residence, place of work, or the place of the alleged infringement - if the data subject considers that the processing of personal data concerning them

infringes this Regulation.

(23) According to Section 60(1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may initiate a data protection authority procedure ex officio.

(24) According to Section 71(1) of the Infotv., during its proceedings, the Authority may process all personal data, as well as data classified as protected secrets by law and data subject to professional secrecy, to the extent and for the duration necessary for the conduct of the proceedings, which are related to the proceedings or whose processing is necessary for the successful conduct of the proceedings.

(25) According to Section 46(1) of the Ákr, the authority shall reject the request if

a) the conditions for initiating the procedure specified by law are not met, and this law does not attach any other legal consequences to that.

(26) According to Section 47 (1) of the Administrative Procedure Act (Ákr), the authority shall terminate the procedure if

a) there would have been grounds for rejecting the application, but the reason came to the authority's attention only after the initiation of the procedure.

IV. Decision:

IV.1. The Applicant's personal data, data controller status

(27) According to Article 4 (1) of the General Data Protection Regulation (GDPR), the Applicant's contact details, surname, first name, and email address qualify as personal data of the Applicant, and the storage of such data constitutes data processing under Article 4 (2) of the GDPR.

(28) The Respondents stated to the Authority that Respondent 2 independently determines the purpose and means of its data processing, therefore it is an independent data controller, as it has independent decision-making authority regarding the personal data of job seekers transferred from [...], including the personal data of the Applicant.

(29) For the above reasons, Respondent 2, as the data controller, was obliged to fulfill the Applicant's request as a data subject and to provide information related to the data subject's request.

(30) The subject of the present procedure was solely to examine whether the request concerning the Applicant's personal data was fulfilled in accordance with the provisions of the General Data Protection Regulation, thus the Authority did not investigate the processing of the Applicant's personal data or the circumstances of their transfer from [...].

IV.2. Fulfillment of the access request and related information obligation

(31) The data subject's right of access is regulated by Article 15 of the GDPR. According to this, the data subject is entitled to receive feedback regarding whether their personal data is being processed, and if such processing is ongoing, they are entitled to be informed about the purpose of the data processing, the categories of personal data concerned, the recipients to whom their personal data has been disclosed (or will be disclosed), the duration of storage, the source of the data, their rights to exercise their rights as a data subject, and their right to contact the Authority.

(32) The Applicant turned to Respondent 2 with their access request on April 7, 2022. Respondent 2, as detailed in paragraph (14), only realized after receiving the Authority's decision that this had not occurred due to an administrative error.

(33) According to Article 12 (3) of the GDPR, Respondent 2 was required to inform the Applicant regarding their access request within one month from the receipt of the request. Based on this, the one-month deadline for Respondent 2 to respond to the Applicant's access request expired on May 7, 2022, meaning that Respondent 2 should have informed the Applicant by this deadline. However, Respondent 2 failed to inform the Applicant within this deadline, stating in their declaration to the Authority that the reason for this was an administrative error. According to the attached copy of the

email, the Applicant's email address was misspelled, which was the reason they did not receive Respondent 2's response letter. According to the attached copy, Respondent 2 would have sent their response on May 12, 2022, after the Applicant's reminder email (in which they again requested access and referred to contacting the Authority if their request was not fulfilled), thus exceeding the one-month deadline set out in Article 12 (3) of the GDPR.

(34) Respondent 2 claimed that they did not respond to the Applicant's request due to an administrative error. Thus, it was not intentional conduct that caused the

****Applicant 2 has not fulfilled the request of the data subject at all. The Authority's position is that this argument does not exempt Applicant 2 from data controller liability, considering that under Article 4(7) of the GDPR, Applicant 2 is considered a data controller. Applicant 2 is the one who organizes the data processing process and establishes its conditions. The most important characteristic of a data controller is that they have substantive decision-making authority and are responsible for fulfilling all obligations set out in the General Data Protection Regulation. For the reasons described, the Authority has determined that Applicant 2 has violated Article 15(1) of the GDPR.****

**** (35) According to point 18 of the European Data Protection Board's guidelines on the concepts of data processor and data controller under the GDPR (hereinafter: Guidelines) 07/2020, "Sometimes companies and public authorities designate a specific person to carry out the data processing activities. Although a specific natural person may be designated to ensure compliance with data protection rules, this person will not be the data controller, but will act on behalf of the legal entity (company or public authority) that is ultimately responsible as a data controller in the event of a breach of the rules. Similarly, even if a specific department or organizational unit has operational responsibility for ensuring compliance regarding certain data processing activities, this does not mean that this department or unit will be the data controller (rather than the organization as a whole)." The Summary of the Guidelines further notes in this regard that "As a general rule, there is no restriction on the type of organization that can fulfill the role of data controller; however, in practice, it is generally the organization itself, rather than an individual within the organization (such as a CEO, employee, or board member), that acts as the data controller."****

**** (36) Based on all of the above, the violation related to the case also falls under the responsibility of Applicant 2 as the data controller. Article 25 of the GDPR requires that the data controller implement appropriate technical and organizational measures throughout the entire data processing process to ensure that requests from data subjects are responded to or fulfilled within the deadline.****

****IV.3. Request regarding the obligation of Applicant 2 to fulfill the data subject's request****

**** (37) Considering that Applicant 2 has not fulfilled the access request of the Applicant as established in paragraph (34) of this decision, the Authority has granted the Applicant's request and has ordered Applicant 2 to fulfill it.****

****IV.4. Request regarding the obligation of Applicant 1 to fulfill the data subject's request****

**** (38) Since Applicant 1 was not considered a data controller regarding the data processing complained of in the request due to the reasons stated in point IV.1 of the decision, as Applicant 2 was considered the data controller in relation to the examined data processing, the Authority has rejected the Applicant's request concerning Applicant 1.****

****IV.5. Legal consequences****

**** (39) The Authority reprimands Applicant 2 under Article 58(2)(b) of the GDPR for violating Article 15(1) of the GDPR.****

**** (40) The Authority has ordered, in accordance with Article 58(2)(d) of the GDPR, that Applicant 2 fulfill the Applicant's access request.****

**** (41) The Authority has exceeded the administrative deadline set out in Section 60/A(1) of the Infotv., therefore the Applicant is entitled to 10,000 HUF, that is, ten thousand forints – at their choice – by bank transfer or postal order based on Section 51(1)(b) of the Ákr.****

V. Other Questions:

(42) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(43) The decision is based on Sections 80-81 of the Ákr. and Section 61 (1) of the Infotv. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr. Pursuant to Section 112 and Section 116 (1), as well as Section 114 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

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(44) The rules of administrative litigation are determined by Act I of 2017 on the Code of Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) point a) subpoint aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) point b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(45) Section 29 (1) of the Kp. and in this regard, Section 604 of the Pp. apply, and according to Section 9 (1) point b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(46) The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) point h) of the Itv.

(47) If the Respondent does not duly prove the fulfillment of the prescribed obligation, the Authority will consider that the obligation has not been fulfilled within the deadline. According to Section 132 of the Ákr., if the obligated party does not comply with the obligation stated in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82 (1) of the Ákr. According to Section 133 of the Ákr., the enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., the enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government ordinance in matters of local government authority.

(48) The Authority exceeded the one hundred and fifty-day administrative deadline set forth in Section 60/A (1) of the Infotv. during the proceedings; therefore, based on point b) of Section 51 of the Ákr., it pays ten thousand forints to the Applicant.

Dated: Budapest, according to the electronic signature

Dr. habil. Attila Péterfalvi
President
Professor Emeritus